

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1390

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO 340B DRUG PRICING PROGRAM REPORTING; AMENDING SECTION 41-351, IDAHO CODE, TO REVISE PROVISIONS REGARDING 340B DRUG PRICING PROGRAM REPORTING; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 41-351, Idaho Code, be, and the same is hereby amended to read as follows:

41-351. 340B DRUG PRICING PROGRAM REPORTING. (1) As used in this section, "340B covered entity" means an entity authorized to participate in the federal 340B drug pricing program under section 340B(a) (4) of the federal public health service act.

(2) Before April 1 of each year, a 340B covered entity shall report the following information to the state department of health and welfare, the state controller's office, and the attorney general concerning the 340B covered entity's participation in the federal 340B drug pricing program for the ~~previous calendar~~ most recent fiscal year:

(a) The name of the covered 340B entity;

(b) The aggregate acquisition cost for prescription drugs obtained under the 340B program and dispensed via contract pharmacies that are not owned or operated by an affiliated 340B entity;

(c) The aggregate ~~payment amount received for drugs obtained under the 340B program and dispensed to patients~~ 340B savings from the prescription drugs dispensed as described in paragraph (b) of this subsection;

(d) The aggregate payment made to ~~pharmacies under contract to dispense drugs~~ contract pharmacies that are not owned or operated by an affiliated 340B covered entity to dispense drugs obtained under the 340B program;

(e) The number of ~~claims for prescription drugs~~ prescriptions dispensed as described in paragraph (e) (b) of this subsection; and

(f) How the 340B covered entity uses any savings from participating in the 340B program, including the amount of savings used for the provision of charity care, community benefits, or a similar program of providing unreimbursed health care to the indigent.

~~(3) The information required to be reported pursuant to subsection (2) of this section shall be reported by payer type, including the following:~~

~~(a) Commercial;~~

~~(b) Medicaid; and~~

~~(c) Medicare.~~

~~(4) (3)~~ (3) The data submitted in the reports required pursuant to subsection (2) of this section is confidential, shall be reported through a secure website portal, and shall not be made available for public inspection.

1 ~~(5)~~ (4) Before November 15 of each year, the state controller's office
2 shall prepare a report that aggregates the data submitted pursuant to sub-
3 section (2) of this section and:

4 (a) Submit the report to the legislative council in an electronic for-
5 mat; and

6 (b) Make such report available on the transparent Idaho website.

7 ~~(6)~~ (5) The attorney general may use the information in the reports re-
8 quired pursuant to subsection (2) of this section for the purposes of inves-
9 tigating medicaid fraud and ensuring compliance with health resources and
10 service administration requirements.

11 SECTION 2. An emergency existing therefor, which emergency is hereby
12 declared to exist, this act shall be in full force and effect on and after
13 July 1, 2026.